



Senate

General Assembly

File No. 616

February Session, 2026

Senate Bill No. 343

Senate, April 14, 2026

The Committee on Judiciary reported through SEN. WINFIELD of the 10th Dist., Chairperson of the Committee on the part of the Senate, that the bill ought to pass.

AN ACT CONCERNING FEES CHARGED FOR CRIMINAL HISTORY RECORDS CHECKS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 29-11 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective July 1, 2026*):

3 (a) The bureau in the Division of State Police within the Department
4 of Emergency Services and Public Protection known as the State Police
5 Bureau of Identification shall be maintained for the purposes of: (1)
6 Providing an authentic record of each person sixteen years of age or over
7 who is charged with the commission of any crime involving moral
8 turpitude, (2) providing definite information relative to the identity of
9 each person so arrested, (3) providing a record of the final judgment of
10 the court resulting from such arrest, unless such record has been erased
11 pursuant to section 54-142a, and (4) maintaining a central repository of
12 complete criminal history record disposition information. The
13 Commissioner of Emergency Services and Public Protection is directed
14 to maintain the State Police Bureau of Identification, which bureau shall

15 receive, classify and file in an orderly manner all fingerprints, pictures
16 and descriptions, including previous criminal records as far as known
17 of all persons so arrested, and shall classify and file in a like manner all
18 identification material and records received from the government of the
19 United States and from the various state governments and subdivisions
20 thereof, and shall cooperate with such governmental units in the
21 exchange of information relative to criminals. The State Police Bureau of
22 Identification shall accept fingerprints of applicants for admission to the
23 bar of the state and, to the extent permitted by federal law, shall
24 exchange state, multistate and federal criminal history records with the
25 State Bar Examining Committee for purposes of investigation of the
26 qualifications of any applicant for admission as an attorney under
27 section 51-80. The record of all arrests reported to the bureau after March
28 16, 1976, shall contain information of any disposition within ninety days
29 after the disposition has occurred.

30 (b) Any cost incurred by the State Police Bureau of Identification in
31 conducting any name search and fingerprinting of applicants for
32 admission to the bar of the state shall be paid from fees collected by the
33 State Bar Examining Committee.

34 (c) (1) (A) The Commissioner of Emergency Services and Public
35 Protection shall charge the following fees for the service indicated: (i)
36 Name search, thirty-six dollars; (ii) fingerprint search, seventy-five
37 dollars; (iii) personal record search, seventy-five dollars; (iv) letters of
38 good conduct search, seventy-five dollars; (v) bar association search,
39 seventy-five dollars; (vi) fingerprinting, fifteen dollars; and (vii)
40 criminal history record information search, seventy-five dollars.

41 (B) [The] (i) Prior to July 1, 2029, the commissioner shall waive fees
42 imposed under subparagraph (A)(vii) of this subdivision for any
43 applicant requesting a criminal history record information search for the
44 purpose of applying for a pardon authorized pursuant to section 54-
45 124a. (ii) On and after July 1, 2029, the commissioner may waive fees
46 imposed under subparagraph (A)(vii) of this subdivision for any
47 applicant requesting a criminal history record information search for the

48 purpose of applying for a pardon authorized pursuant to section 54-
49 124a, provided such applicant completes a form prescribed by the
50 Department of Emergency Services and Public Protection representing
51 such person's indigency.

52 (2) Except as provided in subsection (b) of this section, the provisions
53 of this subsection shall not apply to any (A) federal, state or municipal
54 agency, (B) volunteer fire company or department, or (C) volunteer
55 ambulance service or company. The commissioner shall not require a
56 volunteer fire company or department or a volunteer ambulance service
57 or company to provide proof of insurance as a condition to receiving the
58 waiver of fees pursuant to the provisions of this subsection.

59 (d) (1) The Commissioner of Emergency Services and Public
60 Protection may enter into one or more agreements with independent
61 contractors requiring such contractors to receive and transmit by
62 electronic means fingerprints and demographic information to the State
63 Police Bureau of Identification for the processing of criminal history
64 records checks. The commissioner shall require such contractors to
65 comply with terms and conditions as the commissioner shall prescribe
66 to protect and ensure the security, privacy, confidentiality and value of
67 the fingerprints and demographic information received and transmitted
68 by such contractors. [The] Except as provided in subdivision (2) of this
69 subsection, the commissioner may authorize such contractors to charge
70 a convenience fee, which shall not exceed thirty dollars, for
71 fingerprinting.

72 (2) (A) Prior to July 1, 2029, no independent contractor may charge an
73 individual the convenience fee authorized under subdivision (1) of this
74 subsection when such individual requests receipt and transmission of
75 fingerprints and demographic information for the processing of a
76 criminal history records check for the purpose of applying for a pardon
77 authorized pursuant to section 54-124a.

78 (B) On and after July 1, 2029, no independent contractor may charge
79 an individual the convenience fee authorized under subdivision (1) of
80 this subsection when such individual (i) requests receipt and

81 transmission of fingerprints and demographic information for the
82 processing of a criminal history records check for the purpose of
83 applying for a pardon authorized pursuant to section 54-124a, and (ii)
84 applies for a waiver of such fee due to indigency, on a form prescribed
85 by the Department of Emergency Services and Public Protection, and
86 the commissioner approves such waiver. When the commissioner
87 approves such a waiver, the commissioner shall pay such fee to such
88 contractor.

89 (e) The Commissioner of Emergency Services and Public Protection
90 may adopt regulations, in accordance with the provisions of chapter 54,
91 necessary to implement the provisions of the National Child Protection
92 Act of 1993, the Violent Crime Control and Law Enforcement Act of
93 1994, the Volunteers for Children Act of 1998, and the National Crime
94 Prevention and Privacy Compact as provided in section 29-164f to
95 provide for national criminal history records checks to determine an
96 employee's or volunteer's suitability and fitness to care for the safety
97 and well-being of children, the elderly and individuals with disabilities.

98 (f) (1) Prior to July 1, 2029, the Department of Emergency Services and
99 Public Protection shall not charge an individual any processing or
100 distribution fee for providing a criminal history report or any fee
101 associated with electronic preregistration with the Connecticut Criminal
102 History Request System when such individual is seeking such report or
103 such preregistration for the purpose of applying for a pardon
104 authorized pursuant to section 54-124a.

105 (2) On and after July 1, 2029, the Department of Emergency Services
106 and Public Protection shall not charge an individual any processing or
107 distribution fee for providing a criminal history report or any fee
108 associated with electronic preregistration with the Connecticut Criminal
109 History Request System when such individual (A) is seeking such report
110 or such preregistration for the purpose of applying for a pardon
111 authorized pursuant to section 54-124a, and (B) applies for a waiver of
112 any such fee due to indigency, on a form prescribed by the department,
113 and the commissioner approves such waiver.

114 (g) Not later than July 1, 2029, the commissioner shall make the forms
115 described in subparagraph (B) of subdivision (1) of subsection (c) of this
116 section, subparagraph (B) of subdivision (2) of subsection (d) of this
117 section and subdivision (2) of subsection (f) of this section available on
118 the Internet web site of the State Police Bureau of Identification and
119 provide such forms to each location where a municipal police
120 department provides fingerprinting services. Such forms shall be
121 prominently displayed at such locations, along with other materials and
122 documents necessary to complete an application for a pardon pursuant
123 to section 54-124a.

This act shall take effect as follows and shall amend the following sections:

Section 1	July 1, 2026	29-11
-----------	--------------	-------

JUD *Joint Favorable*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact:

Agency Affected	Fund-Effect	FY 27 \$	FY 28 \$
Department of Emergency Services and Public Protection	GF - Revenue Loss/ Cost	See Below	See Below

Note: GF=General Fund

Municipal Impact: None

Explanation

The bill results in a General Fund (GF) revenue loss to the Department of Emergency Services and Public Protection (DESPP) in FY 27 through FY 29 by requiring the agency to temporarily waive the \$75 criminal history records fee and related pre-registration fees for anyone applying for a pardon. (Under current law DESPP may waive the \$75 fee only for indigent individuals.) Revenue loss from the bill would depend on the additional waivers issued and number of people applying for a pardon.¹

The Out Years

Beginning in FY 30, the GF revenue impact is reduced by reverting eligibility for the criminal history fee waiver back to only those who are indigent. Also beginning in FY 30, there is a potential cost to DESPP by requiring the agency to reimburse independent contractors for the \$30 service fee they would otherwise charge for those who are indigent.

¹ As a point of reference, the Connecticut Board of Pardons and Paroles reviewed 2,032 applications for pardon consideration in FY 25. It is unknown how many of those applicants received the current indigency fee waiver. The potential maximum revenue loss associated with this number of pardon requests is \$152,400 (\$75 x 2,032).

OLR Bill Analysis**SB 343*****AN ACT CONCERNING FEES CHARGED FOR CRIMINAL HISTORY RECORDS CHECKS.*****SUMMARY**

This bill waives certain fingerprinting and criminal history record search and pre-registration fees for individuals requesting them for their pardon applications.

Current law allows the Department of Emergency Services and Public Protection (DESPP) to waive the \$75 fee for a criminal history report for indigent individuals requesting it for their pardon application. The bill instead requires DESPP, up until July 1, 2029, to waive the fee for anyone applying for a pardon before reverting to current law.

The bill also waives the following fees up until July 1, 2029, for anyone applying for a pardon and on and after that date for indigent individuals applying for a pardon:

1. the convenience fee for fingerprinting of up to \$30 charged by independent contractors operating under an agreement with DESPP,
2. any processing or distribution fees charged for a criminal history report, and
3. any fee for electronically pre-registering with the Connecticut criminal history request system.

Under the bill, an individual seeking these fingerprinting or background check services on or after July 1, 2029, for their pardon application may apply for a fee waiver due to indigency on a DESPP-

prescribed form. If the commissioner approves the waiver, DESPP must waive the fee. The bill requires the DESPP commissioner to reimburse independent contractors for any waivers he approves for their convenience fees.

The bill requires the DESPP commissioner, by July 1, 2029, to post the fee waiver forms described above on the State Police Bureau of Identification's website and give them to each location where a municipal police department provides fingerprinting services. These locations must prominently display the forms, together with other materials and documents needed for pardon applications.

EFFECTIVE: July 1, 2026

COMMITTEE ACTION

Judiciary Committee

Joint Favorable

Yea 31 Nay 10 (03/30/2026)